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Proposed Rule: Transfer Agent Rules (17 CFR Parts 240 and 249b; Division of Trading and Markets)

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Commenter: TitleChain Foundation, through Pamela Norton, Founder & Executive Director and Sovereign Chief Architect of the TitleChain Registry.

Filing capacity: Foundation-authorized signatory

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Public standards: <https://github.com/TitleChain-Foundation/icsn-standards>

Interest of the commenter. TitleChain Foundation develops and publishes open, interoperable reference architectures for title, identity, authority, and auditability in tokenized and distributed-ledger-based securities recordkeeping through its public website (titlechainfoundation.org) and its public ICSN standards repository ([TitleChain-Foundation/icsn-standards](https://github.com/TitleChain-Foundation/icsn-standards)). The Foundation does **not** seek to operate, and does not propose that it operate, as a transfer agent, broker-dealer, alternative trading system, clearing agency, exchange, custodian, securities depository, transfer-agent service provider, or pricing, listing, or liquidity venue. The Foundation's submission is offered solely as public-interest technical input on the infrastructure the proposed rulemaking presupposes but does not yet specify.

Public review status of referenced artifacts. The reference models discussed in this comment are not merely conceptual: the Foundation publishes them as public Draft RFCs and JSON Schemas under open review (status vocabulary: Draft, Candidate, Stable, Deprecated) ([ICSN RFC index](#)). They are offered as examples of what interoperable, auditable, human-approval-gated infrastructure could look like, not as adopted standards or mandated designs. Appendix B lists the specific artifacts.

I. Core thesis

The Commission's proposal appropriately modernizes transfer-agent rules and forms for "the technological environment in which transfer agents operate, including the widespread use of electronic record-keeping and communications, and the services they provide to issuers,

investors, and other market intermediaries" ([Federal Register](#)). The proposal amends a broad set of existing transfer-agent rules (including Rules 17ad-1, 17ad-2, 17ad-3, 17ad-6, 17ad-7, 17ad-9, 17ad-10, 17ad-12, 17ad-13, and 17ad-17), rescinds Rule 17ad-4, adopts two new rules (Rule 17ad-30, Compliance, and Rule 17ad-31, Restrictive legends), and amends Forms TA-1 and TA-2 and the registration rules 17ac2-1 and 17ac2-2. The proposal reflects that a registered transfer agent may, under existing staff guidance, use distributed-ledger technology as its official Master Security holder File while remaining subject to federal securities-law requirements concerning record-keeping, reporting, examinations, and operational obligations ([Federal Register](#)).

The Foundation respectfully submits that this modernization is necessary but incomplete in one respect: **it presupposes a neutral public reference architecture for title, identity, authority, jurisdiction, credentialing, and auditability that the rule text does not yet provide.** Without such a reference architecture, the proposal leaves each transfer agent to construct its own proprietary approach to DLT-based Master Security holder Files, wallet-based investor identifiers, machine-readable restrictive legends, and automated processing. The result would be fragmentation, inconsistent investor protection, and reduced interoperability — the very harms the proposal seeks to remedy.

The Foundation therefore recommends that the Commission include in the adopting release, or in supplementary guidance, a request for comment and a direction toward **open, interoperable, credential-bound, jurisdiction-aware DLT record-keeping standards** for transfer agents. The remainder of this comment identifies the specific elements such a reference architecture should contain and ties each to the provisions of the proposal.

II. Open standards, public-commons infrastructure, and interoperability

TitleChain Foundation is a public-commons foundation committed to developing and maintaining an **open-source, decentralized reference architecture for title, provenance, authority, and ownership records.** The Foundation's M5Canon framework provides a standards-based governance and policy layer intended to support infrastructure that is interoperable, auditable, portable, resilient, and capable of being implemented by many independent organizations rather than controlled by a single platform.

The Foundation's public materials describe a long-term stewardship and non-capture model anchored by the TitleChain Sovereign Purpose Trust, designed for long-duration public stewardship and intended to reduce the risk that foundational infrastructure becomes controlled by any single company, government, institution, vendor, or private interest ([TitleChain Foundation](#)).

The Foundation submits this architecture solely as an **optional, publicly reviewable reference model.** We do not ask the Commission to designate TitleChain, M5Canon, or any other registry as a required system; to appoint the Foundation as an operator or administrator of regulated

records; or to permit any public or decentralized registry to supersede the official books and records that applicable law assigns to a registered transfer agent, issuer, or other regulated entity.

Instead, we recommend that the Commission encourage the development and voluntary adoption of **open, interoperable, machine-readable standards** for distributed-ledger and digital-asset record-keeping. Such standards could allow transfer agents, issuers, custodians, broker-dealers, regulated trading venues, financial institutions, and other authorized service providers to exchange verifiable information concerning identity, authority, title, provenance, restrictions, ownership state, and permitted transfers without requiring every participant to operate within the same proprietary system.

Under this model, each regulated entity would continue to control and remain responsible for its own legally authoritative records, compliance obligations, supervisory procedures, security controls, governance, and regulated functions. Open standards would provide the **interoperability layer between those systems**, not replace the institutions or legal responsibilities that govern them.

This distinction becomes increasingly important as markets move from paper and institution-specific databases toward programmable records, distributed ledgers, digital assets, and AI-assisted operations. Without common standards, the market risks replacing today's fragmented databases with a new generation of incompatible proprietary ledgers and platform-controlled digital records.

The Foundation therefore proposes a different path: a durable public technical commons in which independent registries and regulated systems can interoperate while authority remains distributed among the legally responsible parties.

In practical terms, the reference model is designed to allow:

> one issuer to use one system, a registered transfer agent another, a custodian another, and a broker or regulated venue another—while each can verify the same underlying title, provenance, authority, restrictions, and state-transition evidence without surrendering control of its own authoritative records.

Planned decentralized commons governance

The Foundation's present legal and operating entities will remain responsible for their existing obligations while the public-commons infrastructure is being built. Upon funding of the team required to support the standards program, activation of the required member base, adoption of governing principles, and completion of appropriate legal, tax, and regulatory review, the Foundation intends to organize a **separate Wyoming Decentralized Unincorporated Nonprofit Association (DUNA)** for the decentralized stewardship and member governance of eligible TitleChain/ICSN public-commons activities.

Wyoming's DUNA framework requires at least 100 members joined by mutual consent for a common nonprofit purpose and permits governing principles to include agreements, consensus

mechanisms, smart contracts, and enacted governance proposals. The contemplated DUNA would provide a member-governed vehicle for eligible commons activities; it would not cause software or autonomous agents to become legal decision-makers, eliminate accountable human authority, alter the duties of regulated participants, or automatically absorb existing TitleChain or M5Labs entities.

Consistent with the M5HUM/M5AGT authority model, **membership alone would not confer operational authority**. Administrator powers, regulated roles, credentials, delegated agent permissions, and executable actions would remain separately defined, scoped, revocable, and auditable under the governing principles, applicable law, and M5Canon controls. TitleChain Foundation Labs (M5Labs), operating from Beverly Hills, California, is intended to support engineering, research, standards implementation, and program operations while remaining responsible for its own legal and operating obligations unless a later restructuring is separately approved and completed.

The DUNA roadmap is a future governance plan and is not represented in this comment as already formed or activated.

The objective is not to centralize authority or remove regulated intermediaries. It is to provide a **shared public language for trustworthy digital records** so that the transition from paper to digital assets strengthens, rather than weakens, provenance, accountability, portability, competition, and regulatory visibility.

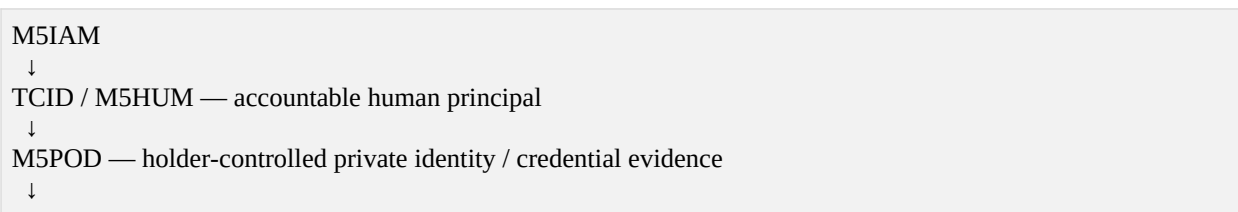
For public and regulatory materials, this comment uses **Title Rights & Provenance Record** as the plain-language name for the structured TitleChain record that preserves the underlying right, provenance, authority, restrictions, lifecycle, and linked evidence. The internal M5/TitleChain architecture may refer to the same construct as the **Title Container**.

III. M5IAM / M5HUM and credential-bound participant identifiers

Commissioner Peirce has specifically asked whether transfer-agent rules should continue to require names and physical addresses or allow "**other identifiers, such as email and digital wallet addresses**" as securities move onchain ([SEC statement, Sept. 1, 2026](#)).

The Foundation respectfully submits that **a bare wallet address is an identifier, not authority**. A wallet address alone does not establish the accountable person or legal entity, the person's current role, jurisdiction, authority scope, professional or organizational standing, revocation status, or the evidence supporting a transfer instruction.

The M5 reference architecture separates these functions:



M5-CV / SOPHIA — selected capability, role, and credential state
↓
credential-bound wallet / delegated M5AGT
↓
M5Canon authority evaluation

M5IAM is the identity-and-access floor. M5HUM identifies the accountable human principal. M5-CV/SOPHIA may describe current capability and role evidence, while any delegated M5AGT remains subordinate to the current authority of its accountable M5HUM or legal entity. No capability profile, credential, wallet, or agent becomes an independent source of legal authority.

This model does **not** replace customer-identification, transfer-agent registration, issuer records, sanctions controls, professional licensing, or any securities-law obligation. It provides a standards-based way to bind a digital identifier to purpose-limited, current, revocable authority without requiring the wallet address itself to carry legal meaning.

Specific recommendation: The Commission should invite comment on whether a credential-bound participant-identifier model; including accountable-principal identity, current role/credential state, jurisdiction, revocation, and evidence would improve the reliability of DLT-based transfer-agent record-keeping alongside existing investor-identification obligations.

IV. Known entity, current human authority, and jurisdiction; Forms TA-1 and TA-2

The proposal would amend Forms TA-1 and TA-2; amend Rule 17ac2-1 to change the registration effectiveness period; and amend Rule 17ac2-2 to require correction of materially inaccurate, misleading, or incomplete Form TA-2 information within the proposed period after discovery ([Federal Register](#)).

For modern digital workflows, the Foundation recommends separating **entity resolution** from **human/agent authority**. A transfer-agent system should be able to establish the legal entity or institution first, then determine which person currently has authority to act for it, and only then determine whether an automated agent is permitted to perform the exact requested function.

The public reference architecture expresses this as:

KNOWN LEGAL ENTITY / INSTITUTION
official identifiers + registry references
↓
ACCOUNTABLE M5HUM / LAWFUL PRINCIPAL
↓
CURRENT ROLE / APPOINTMENT / CREDENTIAL
↓
JURISDICTION + SCOPE + RESTRICTIONS

↓
BOUNDED M5AGT, IF ANY

The broader M5 reference implementation includes JNR for jurisdiction resolution and SwiftBRIDGE for cross-referencing legacy institutional identifiers and account/routing relationships to M5 entity/account references. Those layers do not create governmental or regulatory authority and do not replace the authoritative issuer of a BIC, LEI, government identifier, professional license, or transfer-agent registration.

The significance for Forms TA-1 and TA-2 is practical: changes in registration, employment, appointment, role, jurisdiction, or good standing can be recorded as current-state changes without erasing the identity of the person or the historical evidence of prior authorized actions.

Specific recommendation: The Commission should invite comment on whether Forms TA-1 and TA-2 should elicit, in a technology-neutral manner, information about DLT Master Securityholder Files, credential-bound identifiers, delegated/automated agents, jurisdictional controls, and revocation/correction governance.

V. Machine-readable restrictive legends and transfer rights

The proposal would adopt new Rule 17ad-31 concerning restrictive legends, including maintenance of a current list of issuer employees authorized to instruct a transfer agent regarding placement and removal of legends and controls against acting on unauthorized instructions ([Federal Register](#)).

The Foundation recommends that restrictive legends and transfer conditions be representable as **machine-readable policy objects bound to the underlying Title Rights & Provenance Record**, rather than existing only as text attached to one token representation. Where those conditions are expressed through an executable agreement, the Foundation further recommends a **Ricardian three-part representation** consisting of: **(1) human-readable legal terms, (2) machine-readable structured meaning, and (3) separately bounded executable code or instructions**. All three representations should share the same agreement identifier, version, and content digest, with an explicit conflict rule providing that executable code may not silently alter the controlling human-readable legal terms or the legally authoritative transfer-agent record.

A machine-readable restriction should be able to identify its legal/source authority, jurisdiction, affected asset or issue, current status, permitted actors, placement/removal authority, effective period, required approvals, and evidence. When a wrapper, bridge, wallet, or execution rail changes, the restriction should remain attached to the underlying right and authoritative record relationship.

This is also where authority must be granular. Permission to originate or mint a representation does not automatically confer permission to transfer it, approve a transfer, remove a legend, correct a record, freeze/hold the asset, or terminate the representation.

The M5 reference architecture uses **M5MST — Origination, Minting, Sovereign Registration, and Transfer Authority** for the controlled origination/mint/registration state-event: the event records who had authority to originate the M5AST representation and the evidence supporting that authority. Subsequent transfer capabilities are separately scoped and revocable.

Specific recommendation: The Commission should invite comment on whether a standards-based, machine-readable restrictive-legend and transfer-right format, bound to the Title Rights & Provenance Record rather than to a token alone, would improve transfer restriction enforcement and examination evidence.

VI. M5Canon Six-Gate control for automated and AI-assisted transfer-agent workflows

The proposal would adopt new Rule 17ad-30, requiring registered transfer agents to establish, maintain, and enforce written compliance policies and procedures, and would replace Rule 17ad-12 with a broader risk-management framework addressing theft, loss, misuse, unauthorized access, and business continuity ([Federal Register](#)).

As transfer-agent workflows become more automated, the Foundation recommends a pre-execution control model in which **an automated agent cannot become the source of its own authority**.

The M5 reference implementation expresses the control as six ordered gates:

Gate	Requirement	M5 reference implementation
1	Accountable principal identity	M5IAM / TCID / M5HUM
2	Current role / credential / appointment	SOPHIA + credential/authority registry
3	Jurisdiction and authoritative legal context	JNR / USC + external authoritative sources
4	Deterministic policy and restrictions	M5Canon
5	Required accountable human/entity approval	recorded approval / delegation policy
6	Tamper-evident evidence and audit anchor	authorization receipt / audit anchor

If a required identity, credential, standing, jurisdiction, restriction, approval, or audit condition is missing, stale, expired, revoked, or outside scope, the requested capability should fail closed.

This model can be applied **before an M5AGT is activated for a transfer-agent function**, not merely after the action for surveillance. The agent's permitted authority is the intersection of the principal's current authority, delegated scope, current credentials, jurisdiction, asset/issue policy, restrictions, approval state, and valid time window.

The architecture is designed to reduce rogue-agent exposure by preventing a wallet, model, or API key from conferring authority by itself. It does not eliminate the transfer agent's responsibility for its regulated functions; it makes the source, scope, approval, and evidence of machine action explicit and reconstructable.

The Foundation's public authorization-decision-receipt schema illustrates this pattern through structured fields for principal, agent, operation, purpose, jurisdiction, policy version, decision, human-approval requirements, expiry, and provenance. The Foundation's M5AGT operating policy likewise requires a named accountable human/entity and prohibits the agent from independently creating or extending authority.

Specific recommendation: The Commission should invite comment on whether the transfer-agent compliance and risk-management framework should contemplate pre-activation controls for automated agents covering accountable principal identity, current credential/appointment, jurisdiction, deterministic policy, required approval, revocation, and auditable evidence.

VII. Preserving the underlying right while wrappers and legal/regulatory state change

The Foundation's technical state model distinguishes the **underlying asset/right** from later financial-wrapper and jurisdictional/security-state information.

For public reference purposes, the internal M5 model uses:

- **M1 — Money + Utility;**
- **M2 — Commodities;**
- **M3 — Titled / Unique / Collectible RWA;**
- **M4 — Financial Wrapper; and**
- **M5 — Jurisdictional Security-State Profile.**

The important transfer-agent point is not the labels themselves. It is the persistence rule: **later wrapper, restriction, credential, correction, settlement, or legal/regulatory state must not erase the underlying Title Rights & Provenance Record or its history.**

External legal/regulatory classification remains separate and authoritative. M5Canon may evaluate and enforce the resulting state and restrictions; an internal M5 label does not determine whether an instrument or transaction is legally a security, commodity, investment contract, or other regulated arrangement.

This separation allows a transfer agent to preserve provenance and authoritative-record linkage while recording changes in legends, holder eligibility, financial representation, settlement rail, and regulatory state over time.

The broader M5Global architecture also includes a proposed **M5 Global Index and Exchange** public economic-intelligence layer for privacy-preserving, provenance-aware indicators and methodologies. That layer is an economic data/index exchange and is not a securities trading venue and is not necessary to the transfer-agent functions requested in this comment.

Specific recommendation: The Commission should invite comment on whether a reference state model that separates the underlying right from wrapper and legal/regulatory state would improve provenance, restriction, correction, and settlement-state preservation across technology changes.

VIII. Requested outcome

The Foundation respectfully requests that the Commission, in the adopting release or in supplementary guidance:

1. Invite comment on **voluntary open-standards reference architectures** for DLT-based Master Security holder Files (proposed Rules 17ad-9, 17ad-6, 17ad-7), including an underlying Title Rights & Provenance Record with append-only lifecycle history and explicit linkage to the legally authoritative record.
2. Recognize, for comment, a **credential-bound participant-identifier model** in which a wallet address is bound to an accountable principal, current role/credential, jurisdiction, scope, revocation state, and evidence — alongside, not in lieu of, existing obligations.
3. Consider whether **Forms TA-1 and TA-2** should elicit technology-neutral information about DLT Master Security holder Files, credentialed identifiers, delegated/automated agents, jurisdictional controls, and revocation/correction governance.
4. Consider **machine-readable restrictive legends and transfer-right objects** bound to the underlying Title Rights & Provenance Record rather than to a token alone.
5. Consider, within proposed Rules **17ad-30 and 17ad-12**, a pre-activation automated-agent control model covering accountable principal identity, current role/credential, jurisdiction, deterministic policy, required human/entity approval, revocation, and tamper-evident evidence.
6. Invite comment on an **origination-versus-transfer authority model**, so the person/entity authorized to create or register a digital representation is not presumed to possess every later transfer, legend, correction, or cancellation capability.
7. Invite comment on a **reference state model** that separates the underlying right from financial wrappers and transaction-specific legal/regulatory state for provenance and record preservation.

The Foundation does not request that any specific standard, registry, or provider be mandated or designated, and does not seek to perform any regulated transfer-agent function itself. The

Foundation maintains a documented boundary between its **public commons** (open standards, RFCs, schemas, governance, and conformance material, all publicly reviewable) and a **separate approval authority** for any restricted, production, or commercial implementation; contributing to or reading the public commons does not confer credentials, production rights, membership, or a license to perform any regulated function ([M5Ecosystem Approval Boundary](#)). This separation is offered to make clear that the Foundation's public-standards role is distinct from, and does not entail, the operation of any transfer-agent, custody, clearing, or exchange function.

Appendix A — Glossary of commenter terms (proposed, not authoritative)

These are the Foundation's reference-architecture terms, not established legal categories and not substitutes for applicable law.

- **Title Rights & Provenance Record (internal architecture term: Title Container)** — structured record of the underlying right/asset, provenance, lifecycle, restrictions, authority, and related evidence; it does not displace the legally authoritative transfer-agent record where applicable.
- **Ricardian three-part representation** — synchronized human-readable legal terms, machine-readable structured meaning, and separately bounded executable code/instructions sharing a common identifier, version, and digest; executable code does not silently override the controlling legal text or authoritative record.
- **Planned DUNA commons governance** — contemplated future Wyoming member-governed vehicle for eligible public-commons activities after funding, membership, governing-principles, and legal/tax/regulatory requirements are satisfied; not represented as currently formed or activated.
- **M5IAM** — identity-and-access floor of the M5 reference implementation.
- **M5HUM** — accountable human principal type in the M5 reference implementation.
- **M5AGT** — bounded autonomous/software agent acting under delegated authority and never exceeding the current authority of its accountable principal.
- **M5AST** — digital asset/token representation associated with an underlying TitleChain record; not presumed to be the underlying legal asset or authoritative ownership record.
- **M5MST** — Origination, Minting, Sovereign Registration, and Transfer Authority; records who had authority at origination and which later transfer, restriction, legend, correction, or termination capabilities are separately permitted.
- **M5Canon Six Gates** — principal identity, current role/credential, jurisdiction, deterministic policy, required accountable approval, and evidence/audit anchoring.
- **JNR** — jurisdiction naming/resolution layer that maps technical namespace references to authoritative external jurisdictional sources; it does not create governmental authority.
- **SwiftBRIDGE** — legacy financial-institution identifier/account crosswalk to M5 jurisdiction/account references; it is not the SWIFT network.

- **M5 Global Index and Exchange** — proposed public economic data/index/methodology exchange; not a securities trading venue.
- **M1–M5 state model** — internal technical state model separating underlying asset/right, financial wrapper, and jurisdictional security-state profile; it does not make a legal classification.

Appendix B — Public artifacts referenced

The following are public Draft artifacts in the ICSN standards repository. Each is under public review and is cited as an example of a reviewable, interoperable reference artifact — not as an adopted standard or a mandated design. Inclusion here does not represent that any artifact is deployed, credentialed, or authorized for production use.

Artifact	Type	Status	Relevance to this comment
Transfer-Agent Digital-Asset Reference Architecture	Reference architecture	Public review	End-to-end TA authority/title/evidence flow.
M5IAM → M5HUM Human Authority Architecture	Reference architecture	Public review	Accountable principal / identity root (Section III).
M5Canon Six-Gate Authority and Transfer Control	Control model	Public review	Pre-activation agent/transfer controls (Section VI).

Artifact	Type	Status	Relevance to this comment
M5MST Origination and Transfer Authority	Reference architecture	Public review	Separates mint/origination authority from transfer rights (Section V).
Credentialed Authority Registry	Reference model	Public review	Current role, appointment, standing, delegation, and revocation (Sections III–VI).
M5-CV Capability Profile schema	JSON Schema	Public review	Holder-controlled capability evidence; not identity or authority by itself.
m5-consent-event schema	JSON Schema	Public review	Permission/restriction lifecycle (Section V).
m5-authorization-decision-receipt schema	JSON Schema	Public review	Per-action principal/agent/purpose/jurisdiction/approval/evidence receipt (Section VI).
M5AGT Credentialed Operations	Operating policy	Public review	Bounded delegated machine authority (Section VI).
RFC 0001 — Hardware	Draft RFC	Draft	Illustrative Title Rights &

Artifact	Type	Status	Relevance to this comment
Onboarding Standard			Provenance Record / lifecycle model (Section II).
M5Ecosystem Approval Boundary	Boundary statement	Published	Public commons vs. restricted/production implementation.

Exhibits. The following figures accompany this comment as illustrative context; they depict open reference standards the Foundation publishes and do not assert that the Foundation operates any regulated function.

Exhibit	Title	Refers to
Exhibit 1	Open-Standards Commons (Context Diagram)	The layered commons the comment recommends (Sections I –VIII).
Exhibit 2	From Bare Wallet Address to a Layered Foundation	The credential-to-enforcement chain and why a bare wallet address is insufficient (Section III).

Verified rule map (proposed Transfer Agent Rules, 17 CFR Parts 240 and 249b). All citations verified against 91 Fed. Reg. 56946 (Sept. 4, 2026) ([Federal Register](#)):

Proposed action	Rule (17 CFR)	Relevance to this comment
Amends — defines "master securityholder file"	Rule 17ad-9	Title container / open-standards MSF (Section II)
Amends — recordkeeping incl. MSF, control books, transfer journals	Rule 17ad-6	Append-only lifecycle / provenance (Section II)
Amends — electronic recordkeeping, 6-yr retention	Rule 17ad-7	Audit-log retention (Sections II, VI)
Amends — registration effectiveness 30 → 45 days	Rule 17ac2-1	Registered-agent jurisdiction (Section IV)

Proposed action	Rule (17 CFR)	Relevance to this comment
Amends — Form TA-2 correction within 60 days	Rule 17ac2-2	Credential-revocation correction (Section IV)
Amends Forms TA-1 / TA-2	Forms TA-1, TA-2	Disclosure of DLT/wallets/agents (Section IV)
Adopts — Compliance (policies & procedures, board review)	Rule 17ad-30 (new)	Credentialed/auditable AI agents (Section VI)
Replaces safeguarding with risk-management rule	Rule 17ad-12	AI-agent controls / BCP (Section VI)
Adopts — Restrictive legends	Rule 17ad-31 (new)	Machine-readable legends (Section V)
Rescinds	Rule 17ad-4	Removed exemptions
Reference (T+1 settlement)	Rule 15c6-1(a)	"Promptly" / turnaround timing

Wyoming DUNA statutory reference: Wyoming Decentralized Unincorporated Nonprofit Association Act, Wyo. Stat. ch. 17-32, including current 2026 amendments; official Wyoming Legislature materials: <https://wyoleg.gov/statutes/compress/title17.pdf> and <https://wyoleg.gov/2026/SessionLaws.pdf>.

Appendix C — Source verification and public references

Verification date: September 5, 2026.

This comment distinguishes between **primary legal/regulatory authorities** and **Foundation-authored public reference materials**. Foundation materials support statements about the Foundation's own standards program and architecture; they are not offered as independent evidence of governmental endorsement, regulatory status, legal classification, or production certification.

C.1 Primary legal and regulatory authorities

Topic verified	Primary source	What the source supports
SEC rulemaking identity and status	SEC — Transfer Agent Rules, File No. S7-2026-30	Proposed rule; Release No. 34-106246; SEC issue date Sept. 1, 2026; comments due 60 days after Federal Register publication.
Official proposed-rule text and filing instructions	SEC Issued Version — Release No. 34-106246	Rules/forms proposed for amendment; new Rules 17ad-30 and 17ad-31; Form TA-1/TA-2 changes; filing methods; Commission contact information.

Topic verified	Primary source	What the source supports
Federal Register publication and deadline	91 Fed. Reg. 56946, Document No. 2026-18190	Publication Sept. 4, 2026; comments close Nov. 3, 2026; pages 56946–57061; File No. S7-2026-30; Release No. 34-106246.
DLT as official Master Securityholder File	SEC Division of Trading and Markets FAQ — Q11	Staff view that a registered transfer agent may use DLT as its official Master Securityholder File or a component thereof if all applicable federal securities-law requirements are satisfied.
Wallet / digital identifiers in transfer-agent modernization	Commissioner Hester M. Peirce — Sept. 1, 2026 statement	Commissioner Peirce's request for comment on whether identifiers such as email and digital wallet addresses should be permitted as securities move onchain.
Restrictive legends, compliance, and risk-management proposals	SEC Issued Version — Release No. 34-106246	Proposed Rule 17ad-31 authorized-issuer-representative/restrictive-legend controls; proposed Rule 17ad-30 compliance policies; proposed amendments to Rule 17ad-12 and related recordkeeping/forms.
Wyoming DUNA statutory basis	Wyoming Statutes, Title 17, Ch. 32 and 2026 Session Laws, Ch. 25	DUNA structure; 100-member threshold; common nonprofit purpose; governing principles; 2026 amendments effective July 1, 2026.

C.2 Foundation-authored public references

Public reference	Purpose in this comment
TitleChain Foundation	Public description of the Foundation, ICSN standards program, stewardship/non-capture model, M5 reference implementation, and public-commons mission.
TitleChain Foundation / ICSN Standards on GitHub	Public RFCs, schemas, governance, conformance material, reference architectures, and implementation-neutral standards work.

C.3 Verification boundary

The Foundation's technical terms — including **Title Rights & Provenance Record**, **M5IAM**, **M5HUM**, **M5AGT**, **M5AST**, **M5MST**, **M5Canon Six Gates**, **JNR**, **SwiftBRIDGE**, and **M5 Global Index and Exchange** — are Foundation-defined reference-architecture terms unless an external source is expressly cited.

The Foundation does not rely on a private repository as legal authority. Private implementation material may inform the design of public reference schemas and examples, but the legal and regulatory propositions in this comment are grounded in the primary public authorities listed above.

Appendix D — Technical Definitions, Standards Alignment, and Minimum Conformance Objects

Purpose and boundary. This appendix supplies enough technical detail to evaluate the Foundation's recommendations without requiring a reviewer to follow external links. It describes an implementation-neutral reference model. It does not claim that any M5 component is registered, licensed, certified, endorsed, integrated, deployed, audited, or legally sufficient for a regulated activity.

Meaning of standards alignment. In this comment, “aligned,” “compatible,” and “supported” mean that the architecture is designed to map to, transport, reference, or validate data expressed through an external specification. Those terms do not assert full conformance, certification, formal partnership, trademark permission, or endorsement. Applicable law, official registries, regulated entities, and authoritative records remain controlling.

D.1 Authority is not execution

A cryptographic key, wallet address, account identifier, API credential, software agent, or model endpoint can identify or authenticate a technical actor, but it does not by itself establish current legal authority. Authority must be derived from an accountable human or legal entity and evaluated against current role, credential, jurisdiction, purpose, scope, restrictions, approvals, expiry, suspension, and revocation state.

An automated agent may prepare, route, or execute an instruction only within delegated authority already established by an accountable principal. The agent may not issue its own credential, expand its own scope, waive an approval, select a different jurisdiction, or treat successful technical execution as proof of legal authorization. This separation reduces rogue-agent exposure by preventing the agent from becoming the source of its own authority.

D.2 Credential-bound participant and authority tuple

A transfer instruction should resolve, directly or by authoritative reference, the following minimum tuple: principal identifier; represented entity; current role or appointment; credential

issuer and status source; jurisdiction; authorized purpose and action; asset or issue scope; permitted counterparties or destinations; monetary or quantity limits; required approvals; effective time and expiry; revocation or suspension state; policy version; and evidence digest. Identity may persist while authority changes or ends.

D.3 Minimum conformance objects

Object	Minimum content	Regulatory purpose
Authority proof	Principal, represented entity, role, credential/status source, jurisdiction, scope, expiry, revocation state, policy version, evidence digest.	Shows why the actor was authorized at the relevant time.
Transfer-event receipt	Issue and asset identifiers, prior and resulting authoritative state, instruction, approvals, restrictions evaluated, timestamps, responsible systems, signatures/digests, exceptions.	Supports reproducible transfer-journal and examination evidence.
Restriction/legend policy object	Legal or issuer source, human-readable term, machine-readable condition, affected security, jurisdiction, effective period, permitted actions, removal authority, conflict rule, version/digest.	Keeps restrictions attributable, reviewable, and bound to the underlying record.
Automated-agent action receipt	Accountable principal, agent identifier, delegated purpose and scope, model/tool version where material, inputs referenced, policy gates, human/entity approval, action, output, timestamp, revocation check, evidence anchor.	Shows that automation operated within current bounded authority.
Correction and cancellation record	Original event, error or authority basis, authorized corrector, approvals, before/after state, preserved history, notification status, timestamp, evidence digest.	Prevents silent rewriting of regulated history.
Successor-transfer package	Current authoritative state, complete event history, open restrictions, credentials/status references, reconciliations, unresolved exceptions, schemas, checksums, signatures, export date.	Supports portability, continuity, recovery, and migration between providers.

D.4 M5Pay and payment-rail neutrality

M5Pay is an implementation component beneath the M5-OMI interoperability boundary and the M5Canon authority layer. It is intended to be rail-, asset-, provider-, ledger-, wallet-, and protocol-agnostic. It may translate and route an already-authorized payment or settlement instruction to an eligible external rail, but it does not create the principal's authority, determine legal classification, become the authoritative securities record, or displace the regulated institution responsible for custody, money movement, settlement, recordkeeping, or compliance.

Depending on the transaction and responsible provider, an adapter could support bank and payment messaging, card or account-to-account rails, approved digital-asset settlement, or HTTP-native machine-payment protocols. Each adapter must declare its provider, jurisdiction, asset and account classifications, credentials, limits, finality semantics, error handling, reconciliation method, and evidence output. Support for an adapter or message format does not imply that every instrument or rail is legally available in every context.

D.5 External standards and interoperability references

External specification or system	Illustrative M5 mapping	Public reference
W3C Verifiable Credentials Data Model 2.0	Credential representation and status evidence	Official specification
W3C Decentralized Identifiers (DID) Core	Portable identifier references where appropriate	Official specification
OAuth 2.0 and OpenID Connect/Federation	Delegated access, authentication, metadata, and multilateral trust	Official specification
Web Authentication (WebAuthn) / FIDO	Phishing-resistant human authentication and hardware-backed credentials	Official specification
ISO 20022	Structured financial messaging and regulated-rail adapters	Official specification
Global Legal Entity Identifier System	Authoritative legal-entity identifier cross-references	Official specification
OpenAPI Specification	Portable, reviewable service-interface descriptions	Official specification
Model Context Protocol	Tool and context interoperability for bounded agents	Official specification
x402	Optional HTTP-native payment adapter for machine commerce	Official specification
Solid	Portable personal-data stores and member-controlled data boundaries	Official specification

The Foundation's broader public standards-corridor map also identifies open-source, data, compute, privacy, hardware, climate, public-good, and regulated-finance reference corridors. Names shown there are standards,

ecosystem, or candidate-corridor references unless a formal relationship is separately announced: [M5 Sovereign Web Map](#).

D.6 Examination, portability, and fail-closed behavior

A conforming implementation should permit an examiner or authorized reviewer to reconstruct why an action was allowed, who approved it, which policy and credential versions controlled, what authoritative state changed, and how the result reconciled to required books and records. Evidence access should be role-appropriate and should not require indiscriminate publication of personal, privileged, confidential, or security-sensitive information.

Portability requires open, documented exports and independently verifiable checksums, signatures, schema versions, restriction state, credential/status references, and unresolved exceptions. If an identity, credential, jurisdiction, policy, approval, or authoritative-state dependency is unavailable, inconsistent, expired, revoked, or outside scope, consequential execution should fail closed or route to accountable review rather than allowing an agent or adapter to infer its own authority.

Commenter and signature

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Submitted on behalf of TitleChain Foundation.